but that ***all parties shall cooperate*** in bringing the action to trial or other disposition." (Code Civ. Proc. § 583.130, emphasis added.) "That is not complicated language… The policy of the state is that the parties to a lawsuit 'shall cooperate.' Period. Full Stop." (*Lasalle*, 36 Cal.App.5th at 130.)

Given the above, the "ethical obligation to warn opposing counsel of an intent to take a default is now reinforced by a statutory policy that all parties 'cooperate in bringing the action to trial or other disposition." (*Id.* at 137.) "Quiet speed and unreasonable deadlines do not qualify as 'cooperation' and cannot be accepted by the courts." (*Ibid*.)

The "obligation to advise opposing counsel of an impending default is part of an attorney's responsibility to the court and the legal profession and takes precedence over the obligation to represent the client effectively." (*Shapell Socal Rental Properties, LLC v. Chico's FAS, Inc.* (2022) 85 Cal.App.5th 198, 213 citing *Lasalle, 3*6 Cal.App.5th at 134, 137.) "The State Bar Civility Guidelines deplore the conduct of an attorney who races opposing counsel to the courthouse to enter a default before a responsive pleading can be filed." (*Id.* at 135.)

While Plaintiff here is acting in pro per, that does not excuse her actions in failing to notify opposing counsel that she intended to seek a default. "Pro. per. litigants are held to the same standards as attorneys." (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) Thus, courts "see no reason why the rules of professional conduct, at least as those rules govern conduct in the actual course of litigation, should not apply to pro per litigants in the very cases where pro per litigants elect to act as their own attorneys." (*Ibid.*) "To say otherwise would be to give pro per litigants … an unfair advantage over parties represented by attorneys bound by the code." (*Ibid.*)

Plaintiff made no attempt to warn Defendant. It is clear that Defendant is actively litigating this matter – as they have been disputing the pleadings for over two years. Plaintiff's attempt to obtain a default without alerting them will not be countenanced.

Conclusion

Based on the above, Defendants' Motion is **GRANTED**. The default entered on November 21, 2025, is set aside. Defendant shall file their responsive pleadings within ten (10) days of notice of entry of the Order on this Motion.

6. 9:00 AM CASE NUMBER: C24-02427
CASE NAME: REPUBLIC FLOOR, LLC VS. KARIN FAAPOULI
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: JP MORGAN CHASE BANK
TENTATIVE RULING:*

Introduction

Before the Court is Defendant JPMorgan chase bank, N.A.'s ("JPMC") Demurrer to Plaintiff Republic Floor LLC's Second Amended Complaint ("SAC"). The Motion addresses the sixth cause of action for Violation of Commercial Code section 11207 and seventh cause of action for Negligence.

For the reasons explained below, Defendant JPMorgan Chase Bank, N.A.'s Demurrer is **OVERRULED** in its entirety.

Request for Judicial Notice

Defendant JPMC requests judicial notice of four items which consists of three articles and a rule book.

Exhibit A is an article titled "What is an ACH Transaction" published by the Consumer Financial Protection Bureau on its website. Defendant contends that pursuant to Evidence Code § 452(c), the Court may take judicial notice of "acts of legislative, executive, and judicial departments . . . of any state of the United States" including materials published on government websites. (*Martinez v. Cot'n Wash, Inc*. (2022) 81 Cal. App. 5th 1026, 1050 n.7 ["[C]ourts may take judicial notice of information published on official government websites."])

Exhibits B and C are articles titled "How ACH Payments Work" and "ACH Payments Fact Sheet" both published by the National Automated Clearing House ("NACHA"), the entity that governs the ACH payment system network. Both articles are posted on NACHA's website. Defendant contends that pursuant to Evidence Code § 452(h), the Court may take judicial notice of "[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to courses of reasonable accuracy." Defendant brings up that courts routinely take judicial notice of publicly available website content published by credible and reputable sources. (See, e.g., *Cairns v. Franklin Mint Co*. (2000) 107 F. Supp.2d 1212, 1216, affirmed 292 F.3d 1139 (9th Cir. 2000) [applying substantially similar federal standard to take judicial notice of webpages on museum website].)

Exhibit D is an excerpt of articles 2 and 3 of the 2026 NACHA Rules. Defendant contends that the Court may take judicial notice of the NACHA Rules, which are incorporated in relevant part into federal law (see 31 C.F.R.§ 210.3) pursuant to Evidence Code § 452(c), permitting judicial notice of "[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States."

These matters relate to issues that are beyond the scope of the pleadings and were irrelevant to the Court's ruling. The Court DENIES judicial notice of all four of Defendant's exhibits. Only relevant material is a proper subject of judicial notice, even where the Evidence Code provides in mandatory terms that matters be judicially noticed." (*Hayward Area Planning Assn. v. City of Hayward* (2005) 128 Cal.App.4th 176, 182 citing *Mangini v. R.J. Reynolds Tobacco Co.* (1994) 7 Cal.4th 1057, 1063.)

Factual Background

Plaintiff seeks to assert two claims against JPMorgan Chase Bank, N.A. ("JPMC"), seeking recovery of over $7 million in funds allegedly stolen by its former employee, defendant Karin Tufono ("Tufono"), through a series of allegedly unauthorized ACH transfers (beginning in June 2022 and ending in mid-August 2024) from Plaintiff's account with Israel Discount Bank of New York ("IDB") to Tufono's account at JPMC and additional JPMC accounts associated with defendant Samoan Congregational Church of Jesus Christ in Daly City ("Samoan Church"). (SAC at ¶¶ 1, 28.)

JPMC was the beneficiary bank of the fraudulent ACH transfers initiated by Karin Tufono. (SAC, ¶¶ 32–37.) JPMC accepted and credited these ACH transfers into the JPMC accounts held by her and/or the Church. (Id., at ¶ 37.) Most of the ACH transfers were deposited into a Chase Secure Checking account in Karin Tufono's personal checking account that, under JPMC's Digital Services Agreement

("DSA"), could not be used for business purposes. (SAC, ¶¶ 32–34, 73.) Nearly all the transfers were coded as commercial transactions and identified beneficiaries that could not reasonably have been mistaken for the account holder. (Id., ¶¶ 72–73.)

Hundreds of transfers identified "U.S. Customs" as the beneficiary, which could not legitimately own or receive funds through a consumer checking account. (Id., ¶¶ 22, 72–76.) Other transfers identified various company vendors as beneficiaries, which similarly could not have been mistaken for the owners of the accounts where the funds were deposited. (Ibid.) JPMC's systems had information identifying the true owners of the receiving accounts, and JPMC issued monthly statements to those accountholders reflecting the misdescribed, commercially coded payments, bearing the false beneficiary names. (Id., ¶¶ 32 37, 73–76.) Despite this repeated and escalating pattern—and the sheer volume and duration of the transfers—JPMC continued to accept the misdescribed ACH transfers. (Id., ¶¶ 73–78.)

After the embezzled funds were deposited, Defendant Tufono transferred millions of dollars out of her JPMC account through Zelle payments, often immediately after large ACH deposits were credited to her account. (SAC, ¶¶ 38, 81–87.) Those Zelle transfers increased in frequency and size over time and repeatedly exceeded the daily limits set by JPMC for consumer accounts. (Id., ¶¶ 82–89.) Rather than investigate or restrict the activity, JPMC raised Tufono's Zelle transfer limits multiple times and enabled her to keep moving money out of her JPMC account. (Id., ¶¶ 83–85, 88–90.) Despite this sustained pattern of highly suspicious activity, JPMC allowed Karin Tufono to continue maintaining her accounts for illegal purposes, thereby facilitating the embezzlement and dissipation of Plaintiff's stolen funds. (SAC, ¶¶ 38, 91–95.)

<u>Legal Standard for Demurrer</u>

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc*. (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id*. at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

<u>Analysis</u>

Sixth Cause of Action for Violation of Commercial Code § 11207

"The elements of a cause of action for negligence are well established. They are "(a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury." ' " (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) Whether a defendant owes a duty of due care to a particular plaintiff is a question of law. (*Peter W. v. San Francisco Unified Sch. Dist*. (1976) 60 Cal.App.3d 814, 822; 4 Witkin, Summary of Cal. Law (8th Ed. 1974) Torts, § 493, p. 2756.)

Actual Knowledge

JPMC's contention that it lacked actual knowledge because ACH transfers are "automatically processed" and it purportedly complied with the National Automated Clearing House ("NACHA") Operating Rules fails at the outset. (Demurrer, at pp. 14-15.) Whether JPMC in fact relied on automatic processing or complied with NACHA rules are fact issues that cannot be resolved on demurrer. (See *People v. B&I News, Inc*. (1984) 164 Cal.App.3d Supp. 1, 7 ["evidentiary matters are not properly presented in support of, or in opposition to, a demurrer."].)

Grand Bayman Belize, Ltd. confirms this point. There, the court evaluated the defendant bank's procedures and knowledge only at summary judgment, based on the evidentiary record and undisputed facts. (*Grand Bayman Belize, Ltd. v. Wells Fargo & Co*. (C.D. Cal. 2021) 514 F.Supp.3d 1188, 1191.) The court's analysis relied on findings of fact about automated screening systems used by that bank for the transfers at issue. It is improper to make such determinations about JPMC's procedures and knowledge here, on a demurrer, where the Court assesses only whether the SAC alleges facts supporting an inference of actual knowledge.

Plaintiff's allegations that Defendant JPMC violated its own policies are not conclusory. The SAC identifies Defendant JPMC's Digital Services Agreement ("DSA") and alleges in detail that JPMC knowingly accepted over 250 misdescribed ACH transfers that had a "complete disconnect" between the named beneficiaries and the account holders' names and were also commercially coded in violation of the DSA and other policies and procedures. (SAC, ¶ 73.) These allegations are sufficient to show actual knowledge.

TME defined a "complete disconnect" to be when the designated name and account name bear no resemblance to each other and have nothing in common with each other. (*TME Enterprises, Inc. v. Norwest Corp.* (2004) 124 Cal.App.4th 1021, 1034.) The SAC is prime example of a complete disconnect between beneficiary names. Here, the names of the recipient account holders were Karen Taapouli and Samoan Congressional Church of Jesus Christ in Daly City, while the alleged mismatched named beneficiaries on the transfers consisted of "US Customs", "A&M Pallets", and "Penske Truck." This is distinguishable to the facts in *TME* where the Second Appellate District Court of Appeals reasoned that the name specified in appellants' wire transfer, "Vieri Gaines Guadagni, trustee fbo McDaniel," was sufficiently similar to "Vieri Gaines Guadagni," the name associated with the account number designated in the wire transfer, to preclude a finding of a "complete disconnect" between the two names. (*TME Enterprises, Inc. v. Norwest Corp.* (2004) 124 Cal.App.4th 1021, 1034.) Rather, Plaintiff alleges that JPMC knew of a stark and categorical mismatch between the named beneficiaries and the receiving account holders across over 250 transfers (most of which were identically named) and continued to accept misdescribed ACH transfers. (SAC, ¶¶ 73–78.)

Plaintiff has stated sufficient facts to establish Defendant JPMC's actual knowledge of the alleged misdescription of the beneficiary for the ACH transfers.

Privity Requirement

Defendant quotes a decision by the California Eastern District Court case, *Ozer Holdings, LLC v. Citibank, N.A.* (E.D.Cal. 2025) 807 F. Supp. 3d 1133, that relies on Seventh and Second circuit cases that found that a privity requirement applied to claims brought under section 207. (*Approved Mortgage Corp. v. Truist Bank* (7th Cir. 2024) 106 F.4th 582, 590-92.) *Approved Mortgage* noted that

Section 207 does not state what happens when funds are received by the beneficiary's bank despite the prohibition on acceptance. The statutory language states that acceptance 'cannot occur,' but does not explain the effect of the non-occurrence. Section 402 provides this by providing a remedy by which senders are made whole when the beneficiary's bank's acceptance of a payment order could not have occurred. (*Approved Mortg. Corp.*, 106 F.4th at 589.) *Approved Mortgage* endorsed the Second Circuit holding which found that section 402 "imposes a privity requirement such that a sender seeking a refund for an uncompleted funds transfer may look only to the receiving bank to whom it issued a payment order and payment." (*Grain Traders, Inc. v. Citibank, N.A.* (2d Cir. 1998) 160 F.3d 97, 106.)

Ozer, Approved Mortgage, and *Grain Traders* are all decisions that are not binding on this Court. Plaintiff argues that California courts have applied this provision for twenty years since *TME* without needing to discuss privity could be the result of a shared implicit understanding that privity is not a requirement. (Opposition at p. 15: 3-9.) In sum, Defendant JPMC fails to cite a binding California case in support of their argument that Commercial Code section 11207 has a privity requirement. Opposition at p. 15:2-3.)

This Court moves in conjunction with the last 20 years of California jurisprudence without considering privity a requirement for a cause of action for violation of Commercial Code section 11207.

Commercial Code section 11505 Statute of Repose

Commercial Code section 11505 provides, "If a receiving bank has received payment from its customer with respect to a payment order issued in the name of the customer as sender and accepted by the bank, and the customer received notification reasonably identifying the order, the customer is precluded from asserting that the bank is not entitled to retain the payment unless the customer notifies the bank of *the customer's objection to the payment* within one year after the notification was received by the customer."

The official comments for this section reads in part, "This section is in the nature of a statute of repose for objecting to debits made to the customer's account. A receiving bank that executes payment orders of a customer may have received payment from the customer by debiting the customer's account with respect to a payment order that the customer was not required to pay… Under 4A–505, however, the obligation to refund may not be asserted by the customer if the customer has not objected to the debiting of the account within one year after the customer received notification of the debit."

Defendant cites *Zengen* for the proposition that a one-year limitation applies to a sender's claim for refunds from allegedly fraudulent transfers and argues that the SAC alleges that Plaintiff knew of the transactions no later than August 2024, and the SAC alleges that Plaintiff first provided Defendant JPMC with notice of its intent to seek through the FAC filed August 26, 2025, over a year later. (Demurrer at p. 17: 3-17.)

Plaintiff argues that by its plain terms, Section 11505 applies only to "customer[s]" of the bank receiving payment. (Opposition at p. 15: 19-20.) A "customer" is defined as "a person . . . having an account with a bank or from whom a bank has agreed to receive payment orders." (Com. Code, § 11105, subd. (a)(3).) Here, Plaintiff had an account and was therefore a customer of Israel Discount Bank of New York ("IDB"). Plaintiff distinguishes the current facts with *Zengen* because the plaintiff in

Zengen held accounts with Defendant Comerica Bank. (Opposition at p. 16: 4-8.)

The Court agrees with Plaintiff that this statute does not apply because Plaintiff is not a customer as provided in the statute. The Court also notes that the official comments in Commercial Code section 11505 mentioned multiple UCC codes did not once mention the UCC 4A-207 which is the equivalent of Commercial Code section 11207.

Seventh Cause of Action for Negligence

“The elements of a cause of action for negligence are well established. They are “(a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.” ’ ” (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) Whether a defendant owes a duty of due care to a particular plaintiff is a question of law. (*Peter W. v. San Francisco Unified Sch. Dist*. (1976) 60 Cal.App.3d 814, 822; 4 Witkin, Summary of Cal. Law (8th Ed. 1974) Torts, § 493, p. 2756.)

Division 11 Preemption Argument

Division 11 of the Commercial Code preempts “common law causes of action based on allegedly unauthorized funds transfers” only in “two specific areas: (1) where the common law claims would create rights, duties, or liabilities inconsistent with division 11; and (2) where the circumstances giving rise to the common law claims are specifically covered by the provisions of division 11.” (*Zengen, Inc. v. Comerica Bank* (2007) 41 Cal. 4th 239, 253 [holding Division 11 squarely covers and displaces any common law claim where the gravamen of the claim is that the Bank should not have accepted and executed the fraudulent payment orders.]) But it does not “necessarily displace[] all common law actions based on all activities surrounding funds transfers.” (Id., at p. 254.)

Defendant argues that Plaintiff’s repeated allegations that JPMC “unlawfully accepted” the ACH transfers are undoubtedly central to its negligence claim. (Demurrer at p. 18: 16-17.)

Plaintiff responds by stating that the gravamen of Plaintiff’s negligence claim is not JPMC’s acceptance of misdescribed ACH transfers but JPMC’s acts or omissions that allowed Karin Tufono “to transfer embezzled funds out of the Chase Tufono account,” primarily through Zelle payments. (SAC ¶¶ 80–95.)

Thus, the duty complained of in Plaintiff’s negligence cause of action is separate and distinct from the duty contemplated in Plaintiff’s cause of action for violation of Commercial Code section 11207.

Duty of Care from JPMC to Plaintiff

Defendant argues that since Plaintiff is not a JPMC customer with respect to the ACH transfers or withdrawal payments at issue Defendant does not owe any duty to Plaintiff. Defendant JPMC argues that California law is clear: banks do not owe duties to non-customers. (Demurrer at p. 19: 2-9.)

The Second District Court of Appeal held that a financial institution has a duty “not to ignore ‘red flags’ or ‘suspicious’ ‘circumstances’ that may indicate that a third party involved in that transaction is being defrauded, and, in that instance, [ ] not to proceed with the transaction without first doing some investigation to dispel those suspicions.” (*QDOS, Inc. v. Signature Financial, LLC* (2017) 17 Cal.App.5th 990, 999–1000.) Red flags include when a bank's customer tries to have the proceeds of the third party's check that was made out to someone else placed in the customer's own personal account. (*QDOS, Inc. v. Signature Financial, LLC* (2017) 17 Cal.App.5th 990, 1000.)

Hundreds of transfers identified "U.S. Customs" as the beneficiary, which could not legitimately own or receive funds through a consumer checking account. (SAC ¶¶ 22, 72–76.) Other transfers identified various company vendors as beneficiaries, which similarly could not have been mistaken for the owners of the accounts where the funds were deposited. (Id.) JPMC's own systems had information identifying the true owners of the receiving accounts, and JPMC issued monthly statements to those accountholders reflecting the misdescribed, commercially coded payments, bearing the false beneficiary names. (SAC ¶¶ 32 37, 73–76.)

Defendant Tofuno transferred millions of dollars out of her JPMC account through Zelle payments, often immediately after large ACH deposits were credited to her account. (SAC, ¶¶ 38, 81–87.) Those Zelle transfers increased in frequency and size over time and repeatedly exceeded the daily limits set by JPMC for consumer accounts. (SAC ¶¶ 82–89.) Rather than investigate or restrict the activity, JPMC raised Tufono's Zelle transfer limits multiple times and enabled her to keep moving money out of her JPMC account. (SAC ¶¶ 83–85, 88–90.)

Therefore, Plaintiff has established that Defendant owed Plaintiff the duty of investigating the red flag when Defendant Tofuno's had Plaintiff Floor Republic's checks that were made out to another business' name being deposited in her own personal account.

Economic Loss Rule

Defendant takes the position that Plaintiff's negligence claim is further barred by California's economic loss rule, which prohibits "recovery in tort for negligently inflicted purely economic losses, meaning financial harm unaccompanied by physical or property damage." (*Sheen v. Wells Fargo Bank, N.A*. (2022) 12 Cal. 5th 905, 922.) Defendant argues that Plaintiff alleges purely economic losses for its negligence claim and no special relationship exists between Defendant JPMC and Plaintiff because no such special relationship exists between a bank and a non-customer like Plaintiff.

Plaintiff posits that Defendant JPMC's reliance on the economic loss rule is misplaced as the California Supreme Court explained in *Sheen*, the economic loss rule "functions to bar claims in negligence for pure economic losses in deference to a contract between litigating parties," and generally applies to "parties who are in contractual privity." (*Sheen v. Wells Fargo Bank, N.A*. (2022) 12 Cal.5th 905, 922–23, emphasis added.) This is not the case here. Plaintiff is not in contractual privity with JPMC and does not seek damages arising from any contract with JPMC.

Plaintiff concedes that *Sheen* recognizes that the rule may, in limited circumstances, apply where there is not contractual privity when necessary to avoid "liability in an indeterminate amount for an indeterminate time to an indeterminate class." (*Sheen*, at p. 922 [quoting *So. Cal. Gas Leak Cases* (2019) 7 Cal.4th 391, 414].) But that narrow concern is not implicated here, where Plaintiff alleges discrete transactions and a specific, identifiable harm caused by JPMC's conduct. Nor does *Kurtz-Ahlers, LLC v. Bank of America, N.A.* (2020) 48 Cal.App.5th 952 compel a different result. That case concerned a bank's duty of care. As explained above in the duty section, the Court did find a special relationship between Defendant JPMC and Plaintiff as Defendant JPMC owed a duty to Plaintiff to investigate red flags.

Therefore, the economic loss rule does not apply, and the Court should overrule the Demurrer as to

Plaintiff's negligence claim.

Indispensable Party

A party is necessary and "shall be joined as a party in the action if (1) in [its] absence complete relief cannot be accorded among those already parties or (2) [it] claims an interest relating to the subject of the action and is so situated that the disposition of the action in [its] absence may (i) as a practical matter impair or impede [its] ability to protect that interest or (ii) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of his claimed interest." (CCP § 389(a).) If a necessary party cannot be joined, the court should "determine whether in equity and good conscience the action should proceed among the parties before it, or should be dismissed without prejudice, the absent person being thus regarded as indispensable." (*Dreamweaver Andalusians, LLC v. Prudential Ins. Co. of Am*. (2015) 234 Cal. App. 4th 1168, 1173.)

The gravamen is defined by the *acts* on which liability is based, not some philosophical thrust or legal essence of the cause of action. (*MMM Holdings, Inc. v. Reich* (2018) 21 Cal.App.5th 167, 178; citing *Contreras v. Dowling* (2016) 5 Cal.App.5th 394, 404–405.)

Defendant JPMC contends that the gravamen of this action is the series of allegedly wrongful ACH transfers and as the originating bank for all the transfers, Israel Discount Bank of New York ("IDB") is both a necessary and indispensable party because IDB's contractual relationship and dealings with Plaintiff plainly are essential to evaluating the claims and potential defenses. (Demurrer at p. 21: 9-13.)

Plaintiff rebuts by arguing that the presence of IDB is not necessary to achieve complete relief between Plaintiff and Defendant JPMC since JPMC can be held liable to Plaintiff under Commercial Code section 11207 and for negligence based on its own conduct as the beneficiary bank. (Opposition at p. 19: 18-21.)

Defendant JPMC additionally contends that IDB is responsible for all payment orders it originates and owes each receiving institution that each entry has been properly authorized and complies with the NACHA Rules. (Demurrer at pp. 21-22.)

Plaintiff responds to Defendant's additional contention by pointing out if JPMC believes it has a right to indemnity or contribution from IDB, it can file a cross-complaint against IDB, but there is no basis to conclude that IDB is a necessary and indispensable party without whom the claims against JPMC may not proceed. (*Countrywide Home Loans, Inc. v. Superior Court* (1999) 69 Cal.App.4th 785, 797.) At most, if JPMC is correct that IDB bears liability, IDB may possibly be a joint tortfeasor, but it is well settled that "[j]oint tortfeasors are not necessary parties." (Id citing *Singer Co. v. Superior Court* (1986) 179 Cal. App. 3d 875, 892.)

Defendant JPMC has not shown that Israel Discount Bank of New York ("IDB") is both a necessary and indispensable party to this action.

<u>Conclusion</u>

For the reasons above, Defendant JPMorgan Chase Bank, N.A.'s Demurrer is **OVERRULED in its entirety.**

7. 9:00 AM CASE NUMBER: C25-01856
CASE NAME: CHANNEL PARTNERS CAPITAL LLC VS. DEBORAH REYNOLDS
HEARING IN RE: APPLICATION AND HEARING FOR RIGHT TO ATTACH ORDER AND ORDER FOR ISSUANCE OF WRIT OF ATTACHMENT RE: PASSAGE NAUTICAL ENTERPRISES, INC.
FILED BY: CHANNEL PARTNERS CAPITAL LLC
TENTATIVE RULING:

Both applications for Right to Attach Order and Order for Writ of Attachment have been withdrawn by the moving party. See Notice filed June 5, 2026.

8. 9:00 AM CASE NUMBER: C25-01856
CASE NAME: CHANNEL PARTNERS CAPITAL LLC VS. DEBORAH REYNOLDS
HEARING IN RE: APPLICATION AND HEARING FOR RIGHT TO ATTACH ORDER AND ORDER FOR ISSUANCE OF WRIT OF ATTACHMENT RE: DEBORAH SUE REYNOLDS
FILED BY: CHANNEL PARTNERS CAPITAL LLC
TENTATIVE RULING:

See LINE 7 above.

9. 9:00 AM CASE NUMBER: C25-02482
CASE NAME: ALISE MALIKYAR VS. MICHELE BARBARA
HEARING IN RE: JOINDER TO DEMURRER
FILED BY: JIMENEZ, DANIEL
TENTATIVE RULING:

The pending Motion to Disqualify Counsel was recently continued from June 8, 2026 to July 27, 2026. Accordingly, this Demurrer and the related Joinders are continued by the Court, *sua sponte*, for hearing on **August 17, 2026**, **9:00 am**, in **Department 34**. Any opposition shall be filed and served no later than **August 4, 2026**. Moving parties to give notice of the continued date.

10. 9:00 AM CASE NUMBER: C25-02482
CASE NAME: ALISE MALIKYAR VS. MICHELE BARBARA
HEARING IN RE: JOINDER TO DEMURRER
FILED BY: ESPARZA, LYNEETTE
TENTATIVE RULING:

See Line 9 above.

11. 9:00 AM CASE NUMBER: C25-02482
CASE NAME: ALISE MALIKYAR VS. MICHELE BARBARA